



Costs Decision

Site visit made on 18 August 2026

by P Barton BA (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 7th September 2026

Costs application in relation to Appeal Ref: 6011103

Land between Rudyard Road and Hot Lane, Biddulph Moor, Stoke-on-Trent ST8 7JL

- The application is made under the Town and Country Planning Act 1990, sections 78, 322 and Schedule 6, and the Local Government Act 1972, section 250(5).
 - The application is made by Mr & Mrs Webb for a full award of costs against Staffordshire Moorlands District Council.
 - The appeal was against the refusal of permission in principle for construction of up to 9 dwellings.
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Decision

1. The application for an award of costs is refused.

Reasons

2. Parties in planning appeals normally meet their own expenses. However, the Planning Practice Guidance advises that costs may be awarded against a party who has behaved unreasonably and thereby caused the party applying for costs to incur unnecessary or wasted expense in the appeal process.
3. The applicant claims that the Council, or more specifically its Planning Committee, has failed to produce evidence to substantiate the reason for refusal, made vague, generalised or inaccurate assertions about the scheme's impact, and prevented or delayed development which should have clearly been permitted.
4. Set out within the officer report are the development plan policies and material considerations for the proposal, including relevant green belt policy and the definition of grey belt contained within the relevant version of the National Planning Policy Framework (the Framework) at the time the decision was made. A planning balance with a recommendation to approve was also presented to the Planning Committee.
5. A planning committee is entitled to make decisions that are contrary to the recommendation and where this occurs it should show reasonable planning grounds for taking a contrary decision.
6. The Council's appeal statement includes information in the form of the geographical extent of Biddulph Moor and its positioning to the town of Biddulph, including details of the distance between, and the populations of, these settlements. These are alongside commentary demonstrating the appraisal. Moreover, the planning history on the site is a material consideration and details of it were provided, though I gave it limited weight in this case.

7. Although the Framework sets out that villages should not be considered as large built-up areas, no definition is given to the latter. Notwithstanding Biddulph Moor's classification as a 'larger village' in the Staffordshire Moorlands Local Plan, which predates the introduction of grey belt in the Framework, it is reasonable to still make a judgement in relation to this. Whilst I have come to a different conclusion to the Council on this matter, in addition to providing evidence, I am satisfied that the Planning Committee carried out an objective analysis of the proposed development.
8. Biddulph Neighbourhood Plan is included within the reason for refusal, and the officer report lists the relevant policies to this proposal, which include those referred to in the Council's appeal statement. Consequently, I am not persuaded that the Council introduced fresh evidence at a late stage.
9. Concerns raised surrounding the impact such decisions may have on small housebuilders is noted. However, in this case the Council undertook a planning balance having regard to the development plan and other material considerations, including the Framework, in reaching its decision. Accordingly, I do not consider that the Council acted unreasonably in refusing permission.

Conclusions

10. Therefore, unreasonable behaviour resulting in unnecessary or wasted expense has not occurred and an award of costs is not warranted.

P Barton

INSPECTOR